

Tamil Nadu Forest Act, 1882

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State of Tamilnadu- Act

Tamil Nadu Forest Act, 1882

TAMILNADU

India

Tamil Nadu Forest Act, 1882

Act 5 of 1882

Published on 11 September 1882

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Tamil Nadu Forest Act, 1882

(Tamil Nadu Act

5 of 1882

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Statement of Objects and Reasons - Tamil Nadu Forest Act, 1882 (Tamil Nadu Act V of 1882). - This Act is designed to supply the want which had long been felt of a legislative enactment to enable Government to carry out effectually the conservancy of the forests of the Presidency, and to systematise and regulate the action of the Forest Department.

The first necessity is to provide for the constitution of the more important forests as State reserves, and either to clear them under arrangements for due compensation, of private rights which militate against forest conservancy, or to ascertain and define such rights so that future extension of them and fresh encroachments shall be impossible. To this end, the Act enables Government to empower officers to be called Forest Settlement Officers to enquire into and to

commit on record all private rights in areas to be selected for constitution as reserved forests. From the decisions of the officers appeals will lie, in the case of claims involving proprietary rights, to the District Courts, in the case of rights of way and of rights to pasture, to forest produce, or to the use of water, to the Collector or other Revenue Officer of not less standing. When the enquiry is completed and all claims disposed of and settled the forest will be declared by Government to be reserved, and thereafter no fresh rights can accrue therein. The Bill also contains such provisions as are necessary for the protection of forests declared reserved.

The next object of the Act is to give powers for the conservancy of forest lands not included in reserved forests, which will be retained as open forests. It guards against alienation of waste lands which will be selected and set apart, either as already containing forest growth or as capable of being made to produce it, in localities where the general interests require that forests shall be maintained or created. The lands set apart will be called reserved lands, and the reservation willing many cases be made with a view to the eventual formation of reserved forests in these lands. The Bill also contemplates the selection and definition by Collectors under the sanction of Government of further areas in which measures of conservancy are to be adopted. It empowers Government to make rules, to take the place of the then existing Forest and Jungle Conservancy Rules which had been found to a great extent ineffective owing to their not having the force of law, and to attach penalties to breaches of these rules. The rules will apply to all lands reserved against alienation and selected for conservancy as above described. In the open forests there will be no enquiry into or interference with the rights exercised by the people. It is intended and declared that these will remain in full force, subject only to such regulation as the protection and maintenance of the forests may require. Section 32 empowers the Government to declare trees of valuable kinds growing on Government lands to be reserved, and protect such trees from damage.

Chapter IV

of the Bill defines the powers of interference with private forests, with which it is necessary that Government shall be invested. It is considered useless, having regard to the enormous claims for compensation which would arise, to attempt to restrain private proprietors who are destroying the forests by reckless felling, and. this part of the Bill is therefore directed merely to securing protection against damage from fire. Even for this object Government are empowered to take steps only where the private forests protect the supply of springs, rivers or tanks, or are so situated that fires in them endanger Government forests in the vicinity. In these cases the private proprietor will, in the first instance be called upon to adopt such measures of protection as may be required; and when his inability and unwillingness to do so have become clearly manifest he management of the forest may be assumed by Government Officers. The arrangements prescribed are very favourable to the proprietor in that all the losses under the management will fall on the Government and all the gains accrue to him; and in such cases there will be no danger of interference being undertaken except to secure a public object of permanent improvement. Sections 41 and 42 also facilitate the conservancy of private forests, or forests in which Government have part interest by enabling them to be placed under Government management of supervision, and by permitting the extension to them, of the provisions of the Bill.

Section 45 empowers Government to make rules for the regulation of transport of timber, etc., and for the use of property marks, and to apply them in places where they may be wanted for the prevention of smuggling or the protection of the forest revenue. The last four chapters of the Bill deal with penalties ad procedure, cattle trespass and some miscellaneous matters; but the only one of these provisions calling for special notice is that which empowers any police or Forest Officer to arrest without warrant any person who, in his view, commits a forest offence, or is found upon land under conservancy under circumstances which create a reasonable presumption that he has been concerned in such offence. The special difficulties which attend the detection of forest offences appear to make such a power necessary.

The provisions of the Bill are for the most part taken with some necessary modifications from the Indian and Burma Forest Act which have been successfully worked in other parts of India.

For Statement of Objects and Reasons, See Fort St. George Gazette Extraordinary, dated the 6th July 1882, page 17; for Report of the Select Committee, Sec Fort St. George Gazette Extraordinary, dated the 19th August 1882. page 17; for Proceedings in Council, See Fort St. George Gazette Extraordinary, Supplement, dated the 11th July 1882, page 6 Fort St. George Gazette Extraordinary, dated the 12th September 1882, page 9.

Published in Fort St. George Gazette Extraordinary, dated the 6th July 1882.

Statement of Objects and Reasons - Tamil Nadu Forest (Amendment) Act, 1951. - The question of amending the Madras Forest Act, 1882 (Madras Act V of 1882), has been engaging the attention of the Government for a very long time. In 1939, the Chief Conservator of Forests was asked to refer the matter to a Committee of selected Forest officers

and to prepare a comprehensive memorandum specifying the amendments to the Act which the Committee might consider necessary. The recommendations of the Committee were carefully examined and a Bill embodying such of the recommendations as were accepted by the Government together with the Statement of Objects and Reasons and Notes of Clauses was published in February 1944, for the purpose of eliciting public opinion and time was allowed till the 9th March 1944 for the receipt of objections and suggestions. Representations were received from certain persons containing suggestions and criticisms. They were considered in consultation with the Chief Conservator of Forests and also with the Advocate-General and the Bill has been modified suitably.

The provisions of the Bill are explained in the Notes on Clauses below.

Statement of Objects and Reasons - Tamil Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979). - In order to check smuggling of scheduled timber from forests of Tamil Nadu, it is considered necessary to plug certain loop-holes in the Tamil Nadu Forest Act, 1882 (Tamil Nadu Act V of 1882) and to provide for deterrent punishments for any forest offence in respect of scheduled timber. Accordingly, it has been decided to amend the said Act suitably for this purpose.

2. The Bill seeks to give effect to the above decision.

Published in Part IV- Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 27th March 1979

Statement of Objects and Reasons - Tamil Nadu Forest (Amendment) Act, 1981. - The existing procedure to remove encroachments in any land in reserved forest or any land at the disposal of Government is cumbersome and time consuming. Once the encroachment is detected unless timely and immediate action is taken to evict the encroachments in a summary way, the problem of removal of large scale and organised encroachments cannot be solved. It is, therefore, considered necessary that the Forest and Revenue officials should be vested with summary powers of eviction after a brief notice is given to the encroacher. Accordingly, it has been decided to make suitable provision in the Tamil Nadu Forest Act, 1882 (Tamil Nadu Act V of 1882) for this purpose.

2. The Bill seeks to give effect to the above decision.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 9th April 1981.

Statement of Objects and Reasons - Tamil Nadu Forests (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992). - The provisions contained in the Tamil Nadu Forest Act, 1882 (Tamil Nadu Act V of 1882), are found to be inadequate to effectively prevent the large scale illicit removal of scheduled timber, namely, black wood, rosewood, sandalwood, silver oak and teakwood, belonging to the Government, from the forests of this State. It has, therefore, been decided to amend the said Tamil Nadu Act V of 1882 so as to enable the forest officers to seize and confiscate any scheduled timber in respect of which certain forest offence has been committed, together with tools, ropes, chains, boats, vehicle or cattle used in committing such offence and to increase the quantum of penalties provided in the said Act.

2. At present all offences relating to scheduled timber are invariably prosecuted. This has resulted in each and every case being contested in Courts and as such larger number of cases are pending disposal of courts. For the effective enforcement of the Act, it has been decided to amend sub-section (3) of section 55 of the Act to the effect that the compounding facility provided in the said section 55 should not apply to any offence in respect of any sandalwood where the weight of such sandalwood involved in such offence is more than one hundred kilograms and to any scheduled timber other than sandalwood, where the value of such scheduled timber involved in such offence is more than ten thousand rupees. The Bill seeks to give effect to the above decisions.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 24th April 1992.

Statement of Objects and Reasons - Tamil Nadu Forest (Amendment) Act, 1998. -At present cutting and transport of sandalwood tree from patta lands and disposal of such sandalwood tree are regulated by various orders issued by the Government, from time to time. The said regulations are causing bottlenecks in raising sandalwood tree in patta land. To tide over this difficulty and to encourage growing of sandalwood tree in patta lands, the Government have decided to amend the Tamil Nadu Forest Act, 1882 (Tamil Nadu Act V of 1882), suitably.

2. The Bill seeks to give effect to the above decision.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 19th May 1998.

Statement of Objects and Reasons - Sandalwood trees growing in the reserved forests in this State are being illicitly cut by unscrupulous persons and sold in the market. - The penal provisions in the Madras Forest Act, 1882 (Madras Act V of 1882), for the above offences are not adequate. It is proposed to provide deterrent punishment for the above offences.

2. The provisions of the Madras Forest Act, 1882, do not specifically control the possession of sandalwood by private parties. It is considered necessary to prevent the possession of sandal-wood in excess of five kilograms without a

licence issued by the District Forest officer.

It is proposed to amend suitably the Act for the above purposes. It is also proposed to make suitable provisions in that Act to implement the recommendation of the Committee on Subordinate Legislation regarding the placing of rules on the table of both Houses of the Legislature.

3. The Bill seeks to give effect to the above objects.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 23rd September 1961.

Received the assent of the Governor on the 11th September 1882 and of the Governor-General on the 11th October 1882 and came into force on the 1st January 1883.

An Act to make provision for the protection and management afforests in the [State of Tamil Nadu]

[Substituted for the expression 'Presidency of Madras' by the Tamil Nadu Adaptation of Laws Order 1970, which was deemed to have come into force on the 14th January 1969.]

Preamble. - Whereas it is expedient to make provision for the protection and management of forests in the [State of Tamil Nadu]

[Substituted for the expression 'Presidency of Madras' by the Tamil Nadu Adaptation of Laws Order 1970, which was deemed to have come into force on the 14th January 1969.]

; It is hereby enacted as follows:-

Chapter I

Preliminary

1.

Short title.

- This Act may be called the [Tamil Nadu]

[Substituted for the expression 'Madras' by the Tamil Nadu Adaptation of Laws Order 1970, which was deemed to have come into force on the 14th January 1969.]

Forest Act, 1882.

Local extent: [It extends to the whole of the [State of Tamil Nadu]

[Substituted by the Tamil Nadu Adaptation of Laws Order, 1957 with effect from the 1st November 1950 for the original paragraph.]

:]

Provided that the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may, by notification in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

, exempt any place from the operation of the whole or any portion of this Act, but not so as to affect anything done or any offence committed or any fine or penalty incurred or any proceedings commenced in such place before such exemption, and may, in like manner, vary or cancel such notification;

and it shall come into force on such day as the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may, by notification in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

, direct.

Commencement of the Act. - This Act came into force on the 1st day of January 1883.

Notes. - This Act was extended to the merged State of Pudukkottai by section 3 of, and the First Schedule to, the Madras Merged States (Laws) Act, 1949 (Madras Act XXXV of 1949). This Act was further extended to the Kanyakumari district and the Shencottah taluk of the Tirunelveli district by section 5 of the Tamil Nadu Forest (Amendment) Act, 1965 (Tamil Nadu Act 40 of 1965), which came into force on the 1st June 1966, repealing the corresponding law in that territory.

1A.

[Chapters VI-A and VI-B to apply to the transferred territory only.

[Section 1-A was inserted by section 2 of the Tamil Nadu Forest (Amendment) Act, 1965 (Tamil Nadu Act 40 of 1965).]

- The provisions of Chapters VI-A and VI-B shall apply only to the transferred territory.

Notes. - Transferred territory means the Kanyakumari district and Shencottah taluk of the Tirunelveli district.]

2.

Interpretation clause.

- In this Act, and in all Rules made hereunder, unless there is something repugnant in the subject or context,-

"Government".-Government means the State Government;

"Collector".-Collector means the Chief Executive Revenue Officer of a district;

"Forest officer".-Forest Officer means any person appointed by name or as holding an office by, or under the orders of the Government to be a Conservator, Deputy Conservator, Assistant Conservator Extra Assistant Conservator, Forest Ranger, Forester, Forest Guard; or to discharge any function of a Forest Officer under this Act or any Rule made thereunder;

"District Forest Officer".-"District Forest Officer" means the Chief Forest Officer of a District or of a portion of a district, if in independent charge of such portion;

"Tree". -"tree" includes stumps, bamboos and brushwood; "Timber".-"timber" includes trees when they have fallen or have been felled, and all wood, whether cut up or fashioned or hollowed out for any purpose or not;

"Forest produce".-"forest produce" includes the following things when found in, or brought from a Forest, that is to say:- minerals (including limestone and laterite), surface soil, trees, timber, plants, grass, peat, canes, creepers, reeds, fibres, leaves, moss, flowers, fruits, seeds, roots, galls, spices, juice, catechu, bark, caoutehoue, gum, wood-oil, resin, varnish, lac, charcoal, honey and wax, skins, tusks, bones and horns;

[Explanation I. - In the transferred territory, "forest produce" also includes the following things, whether found in, or brought from, a forest or not, that is to say:-

timber or trees which are specified to be royalties under section 40-G.

Explanation II. - For the purpose of Explanation I, timber does not include any wood that has been wrought or fashioned such as doors, windows, articles or furniture and boxes;]

[Added by section 3 of the Tamil Nadu Forest (Amendment) Act, 1965 (Tamil Nadu Act 40 of 1965).]

"Forest offence". - "forest offence" means an offence punishable under this Act or any Rule made thereunder;

"Cattle". - "cattle" includes elephants, camels, buffaloes, horses, mares, ponies, colts, fillies, mules, asses, pigs, rams, ewes, sheep, lamps, goats and kids;

"River". - "river" includes, streams, canals, [back-waters]

[Inserted by section 3 of the Tamil Nadu Forest (Amendment) Act, 1965 (Tamil Nadu Act 40 of 1965).]

, creeks, and other channels, natural or artificial;

"Land at the disposal of Government".- "land at the disposal of Government" includes all unoccupied land, whether assessed or unassessed; but does not include land, the property of land-holders by section [1 of Act VIII of 1865]

[See now Tamil Nadu Estates Land Act, 1908 (Tamil Nadu Act 1 of 1908).]

, Madras, (namely), all persons holding under a sanad-milkiyat-i-istimrar, all other zamindars shrotriyamdars, jagirdars, inamdars and all persons farming lands from the above persons or farming the land revenue under Government; also all holders of land under riyotwar settlements, or in any way subject to the payment of land-revenue direct to Government, and all other registered holders of land in property right.

[Explanation. - In the transferred territory, "land at the disposal of Government" also includes all land occupied temporarily and all land occupied without permission, whether assessed or unassessed, but does not include land being the property of jenmies or Devaswoms;]

[Added by section 3 of the Tamil Nadu Forest (Amendment) Act, 1965 (Tamil Nadu Act 40 of 1965).]

"Magistrate".-"Magistrate" means a Magistrate of the first or second class and includes a Magistrate of the third class when he is specially empowered by Government to try forest offences;

"Imprisonment".-"imprisonment" means imprisonment of either description as defined in the Indian Penal Code (Central Act XLV of 1860);

["Scheduled timber".-"scheduled timber" means any timber as specified in the Schedule,]

[Added by Tamil Nadu Forests (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979).]

["Transferred territory".-"transferred territory" means the Kanyakumari district and the Shencottah taluk of the Tirunelveli district.]

[Added by section 3 of the Tamil Nadu Forest (Amendment) Act, 1965 (Tamil Nadu Act 40 of 1965).]

Chapter II

Reserved Forest

3.

Power to reserve forests.

- The [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may constitute any land at the disposal of Government a reserved forest in the manner hereinafter provided.

4.

Notification by the Government.

- Whenever it is proposed to constitute any land a reserved forest, the [Government]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

shall publish a notification in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

and in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

of the district -

(a)

specifying, as nearly as possible, the situation and limits of such lands;

(b)

declaring that it is proposed to constitute such land a reserved forest;

(c)

appointing an officer (hereinafter called the Forest Settlement Officer) to inquire into and determine the existence, nature and extent of any rights claimed by, or alleged to exist in favour of, any person in or over any land comprised within such limits, or to any forest-produce of such land, and to deal with the same as provided in this Chapter.

The officer appointed under clause (c) of this section shall, ordinarily, be a person other than a Forest Officer, but a Forest Officer may be appointed by the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

to attend on behalf of the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

at the inquiry prescribed by this Chapter.

5.

Suits barred.

- Except as hereinafter provided, no Civil Court shall, between the dates of the publication of the notification under section 4 and of the notification to be issued under section 16, entertain any suit to establish any right in or over any land or to the forest-produce of any land included in the notification published under section 4.

6.

Proclamation by Forest Settlement Officer.

- When a notification has been issued under section 4, the Forest Settlement Officer shall publish in the Official Gazette of the district, and at the headquarters of each taluk in which any portion of the land included in such notification is situate, and in every town and village in the neighbourhood of such land, a proclamation -

(a)

specifying, as nearly as possible, the situation and limits of the land proposed to be included within the reserved forests;

(b)

setting forth the substance of the provisions of section 7;

(c)

explaining the consequences which, as hereinafter provided, will ensure on the reservation of such forests; and

(d)

fixing a period not less than three months from the date of publishing such proclamation in the Official Gazette of the district and requiring every person claiming any right referred to in section 4 either to present to such officer, within such period, a written notice specifying, or to appear before him within such period and state the nature of such right and in either case to produce all documents in support thereof.

The Forest Settlement Officer shall also serve a notice to the same effect on every known or reputed owner or occupier of any land included in or adjoining the land proposed to be constituted a reserved forest, or on his recognized agent or manager. Such notice may be sent by registered post to persons residing beyond the limits of the district in which such land is situate.

7.

Bar of accrual of forest rights.

- During the interval between the publication of such proclamation and the date fixed by the notification under section 16, no right shall be acquired in or over the land included in such proclamation, except under a grant or contract in writing, made or entered into by, or on behalf of the Government, or by, or on behalf of, such person in whom such right, or power to create the same, was vested when the proclamation was published, or by succession from such person;

Prohibition of clearings, etc. -and no fresh clearings for cultivation or for any other purpose shall be made on such land.

No patta shall, without the previous sanction of the [Board of Revenue]

[Substituted for the words 'Governor in Council' by the Tamil Nadu Decentralisation Act, 1914 (Tamil Nadu Act VIII of 1914).]

, be granted on behalf of Government in such land, and every patta granted without such sanction shall be null and void. Nothing in this section shall be deemed to prohibit any act done with the permission in writing of the Forest Settlement Officer.

8.

Inquiry by Forest Settlement Officer.

- The Forest Settlement Officer shall take down in writing all statements made under section 6, and shall inquire into all claims made under that section recording the evidence in the manner prescribed by the Code of Civil Procedure, 1908 (Central Act V of 1908) in appealable cases.

The Forest Settlement Officer shall, at the same time, consider and record any objection which the Forest Officer (if any) appointed under section 4 may make to any such claim.

9.

Powers of Forest Settlement Officer.

- For the purpose of such enquiry, the Forest Settlement Officer may exercise the following powers (that is to say):-

(a)

power to enter, by himself or any officer authorised by him for the purpose, upon any land, and to survey, demarcate and make a map of the same; and

(b)

the powers conferred on a Civil Court by the Code of Civil Procedure (Central Act V of 1908) for compelling the attendance of witnesses and the production of documents.

10.

Claims to rights of occupancy and ownership.

- In the case of a claim to a right in or over any land other than the following rights:-

(a)

a right of way;

(b)

a right to a water-course , or to use of water;

(c)

a right of pasture; or

(d)

a right to forest-produce;

the Forest Settlement Officer shall pass an order specifying the particulars of such claim and admitting or rejecting the same wholly or in part.

(i)

Admitted claims. - If such claim is admitted wholly or in part, the Forest Settlement Officer may-

(1)

come to an agreement with the claimant for the surrender of the right; or

(2)

exclude the land from the limits of the proposed forests; or

(3)

proceed to acquire such land in the manner provided by the [Land Acquisition Act, 1870 (Central Act X of 1870)]

[See now the Land Acquisition Act, 1894 (Central Act I of 1894).]

;

For the purpose of so acquiring such land -

(i)

the Forest Settlement Officer shall be deemed to be a Collector proceeding under the [Land Acquisition Act, 1870 (Central Act X of 1870)]

[See now the Land Acquisition Act, 1894 (Central Act I of 1894).]

(ii)

the claimant shall be deemed to be a person interested and appearing before him in pursuance of a notice given under section 9 of that Act;

(iii)

the provisions of the preceding sections of that Act shall be deemed to have been complied with; and

(iv)

the Forest Settlement Officer with the consent of the claimant, or the Court (as defined in the said Act) with the consent of the claimant and of the Collector of the district may award compensation by the grant of right in or over land, or by the payment of money, or both.

(ii)

Rejected claims-Appeals. - If such claim is rejected wholly or in part, the claimant may, within thirty days from the date of the order, prefer an appeal to the District Court in respect of such rejection only:

Provided that the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may, on just and reasonable cause for the same being shown, extend the period for such appeal within such further period as may seem proper, and an order or endorsement under the signature of one of the Secretaries to Government shall be sufficient authority for the said Court to entertain such appeal beyond the limit above specified. If the Court decides that the claim or such part thereof as has been rejected should be admitted, the Forest Settlement Officer shall proceed to deal with it in like manners as if it had been in the first instance admitted by himself.

(iii)

When a claim has been admitted in the first instance wholly or in part, a like appeal may be preferred on behalf of Government by the Forest Officer appointed under section 4 or other person generally or specially empowered by the Government in this behalf.

11.

Claims to rights of way, water-course, pasture and to forest produce.

- In the case of a claim to rights of the kind specified in clauses (a), (b), (c) and (d) of section 10, the Forest Settlement Officer shall pass an order specifying the particulars of such claim as far as may be necessary to define the nature, incidents and' extent of the rights claimed and admitting or rejecting such claim wholly or in part.

When a claim to any such right is admitted, if the right is for the beneficial enjoyment of any land or buildings, he shall record the designation, position and area of such land, and the designation and position of such buildings.

Where the right is a right to forest-produce, he shall also record whether the forest-produce obtained by the exercise of such right may be sold or bartered.

12.

Provision for rights of pasture or to forest produce admitted.

- When the Forest Settlement Officer has admitted wholly or in part, and recorded under section 11, a claim to a right of pasture or to forest-produce, he shall, as far as possible, provide for the exercise of such right -

(a)

by altering the limits of the proposed reserved forest so as to exclude land of sufficient extent, of suitable kind, and in a locality reasonably convenient for the purposes of the claimant;

(b)

by recording an order continuing to the claimant a right of pasture or to forest-produce (as the case may be), subject to such rules as may be prescribed by the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

The order passed under clause (b) shall record, as far as practicable, the number and description of the cattle which the claimant is, from time to time entitled to graze, the local limits within which, and the seasons during which such pasture is permitted; or

The quantity of timber or other forest produce which the claimant is authorised to take or receive, the local limits within which, the season during which and the mode in which the taking of such produce is permitted; and

such other particulars as may be required in order to define the extent of the right which is continued, and the mode in which it may be exercised.

13.

Commutation of such rights.

- Whenever any right of pasture or to forest-produce admitted under section 11 is not provided for in one of the ways prescribed in section 12, the Forest Settlement Officer shall, subject to such rules as the Government may prescribe in this behalf, commute such right by paying a sum of money in lieu thereof or with the consent of the claimant, by the grant of right, in or over land or in such other manner as such officer thinks fit.

14.

Appeal from order passed under sections 11,12 and 13.

- The claimant, or the Forest Officer appointed under section 4, or any other person generally or specially empowered by the Government in this behalf, may, within sixty days from the date of any order passed by the Forest Settlement Officer under sections 11, 12 and 13, present an appeal from such order -

to a Forest Court constituted as hereinafter provided or where no such Court is constituted, to such Officer of the Revenue Department of not less than twelve years' standing as the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may, from time to time, by notification in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

appoint, by name or as holding an office, to hear appeals from such orders.

In disposing of such appeals, the Revenue Officer appointed as aforesaid shall be guided by the provisions of sections 39 and 40 of this Act.

15.

Appeal under section 14.

- Every appeal under section 14 shall be made by petition in writings and may be delivered to the Forest Settlement Officer who shall forward it without delay to the appellate authority.

16.

Notification declaring forest reserved.

- When the following events have occurred, namely:-

(a)

the period fixed under section 6 for preferring claims has elapsed, and all claims (if any) made within such period have been disposed of by the Forest Settlement Officer; and

(b)

if such claims have been made, the period fixed by sections 10 and 14 for appealing from the orders passed on such claims has elapsed, and all appeals (if any) presented within such period have been disposed of by the appellate authority; and

(c)

all proceedings prescribed by section 10 have been taken and all lands (if any) to be included in the proposed forest which the Forest Settlement Officer has under section 10 elected to acquire under the [Land Acquisition Act, 1870 (Central Act X of 1870)]

[See now the land Acquisition Act, 1894 (Central Act I of 1894).]

, have become vested in the Government under section 16 of that Act;

The [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may publish a notification in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

, specifying the limits of the forest which it is intended to reserve and declaring the same to be reserved from a date to be fixed by such notification.

The Forest Settlement Officer shall, before the date so fixed, publish such notification in the manner prescribed for the proclamation under section 6.

From the date so fixed, such forest shall be deemed to be a reserved forest.

17.

Extinction of rights not claimed.

- Right in respect of which no claim has been preferred under section 6 shall, thereupon, be extinguished unless, before the publication of such notification, the person claiming them has satisfied the Forest Settlement Officer that he had sufficient cause for not preferring such claim within the period fixed under section 6; in which case the Forest Settlement Officer shall proceed to dispose of the claim in the manner hereinbefore provided.

17A.

[Power of the Government to redefine the limits of reserved forests in certain cases.

[Inserted by section 3 of the Tamil Nadu Amendment) Act, 1936 (Tamil Nadu Act VII of 1936).]

(1)

Where the description of the limits of any reserved forest notified under section 16 is defective or is not clear in reference to existing facts, the [Government] may, by [Notification in the]

[See the List of Local Rules and Orders.]

[Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

, declare their intention to redefine the limits of such reserved forest so as to remove the defect or to make the description clear in reference to existing facts. Such notification shall specify, as nearly as possible, the corrections which it is proposed to effect to the limits of the reserved forest.

(2)

On the issue of a notification under sub-section (1), the District Forest Officer shall publish in the Official Gazette of the district concerned and in such other manner as may be prescribed by rules made in that behalf a notice -

(a)

specifying the corrections proposed by the notification under sub-section (1); and

(b)

stating that any objections which may be made in person or in writing to the District Forest Officer, within a period of thirty days from the date of publication of the notice, will be considered by him.

(3)

After the expiry of the period referred to in clause (b) of sub-section (2) and after considering the objections, if any, received by him, the District Forest Officer shall submit to the Government the record of the proceedings held by him together with a report thereon.

(4)

The [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may, after considering the report of the District Forest Officer, by notification in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

redefine the limits of the reserved forest as proposed by the notification under sub-section (1), with such modifications as they think fit or without any modifications.

(5)

Save as provided in this section, it shall not be necessary to follow the procedure laid down in sections 4 to 16 before issuing a notification under sub-section (4).]

18.

No right acquired over reserved forest except as here provided.

- No right of any description shall be acquired in or over a reserved forest except under a grant or contract in writing made by or on behalf of the Government, or by or on behalf of some person in whom such right, or the power to create such right, was vested when the notification under section 16 was published or by succession from such persons:

Provided that no patta shall, without previous sanction of the [Board of Revenue]

[Substituted for the words 'Governor in Council' by the Tamil Nadu Decentralisation Act, 1914 (Tamil Nadu Act VIII of 1914).]

be granted on behalf of Government for any land included within a reserved forest, and every patta granted without such sanction shall be null and void.

19.

Rights continued under section 12 not to be alienated without sanction.

- Notwithstanding anything herein contained, no right continued under section 12 shall be alienated by way of grant, sale, lease, mortgage or otherwise without the sanction of the Government:

Provided that when any such right is continued for the beneficial enjoyment of any land or buildings, it may be sold or otherwise alienated with such land or buildings without such sanction. Any alienation of such right in contravention of this section shall be null and void.

No forest produce obtained in exercise of any right continued under section 12 shall be sold or bartered except to the extent defined by the order recorded under sections 11 and 12.

Any person selling or bartering any forest produce in contravention of this section shall be punished with fine which may extend to two hundred rupees.

20.

Power to stop ways and water-courses in reserved forest.

- The District Forest Officer may, from time to time, with the previous sanction of the Government, stop any public or private way or water-course in a reserved forest:

Provided that a reasonably convenient substitute for the way or water-course so stopped already exists, or has been provided or constructed in lieu thereof.

21.

Penalties for trespass or damage in reserved forests, and acts prohibited in such forests.

- Any person who-

(a)

makes any fresh clearing prohibited by section 7; or

(b)

sets fire to a reserved forest, or kindles, or leaves burning, any fire in such manner as to endanger the same; or who, in a reserved forest,-

(c)

kindles, keeps or carries any fire except at such season and in such manner as the District Forest Officer may, from time to time, notify;

(d)

trespasses or pastures cattle, or permits cattle to trespass;

(e)

fells, girdles, marks lops, taps, uproots or burns any tree, or strips off the bark or leaves from, or otherwise damages, the same;

(f)

quarries stone, bums lime or charcoal, or collects, subject to any manufacturing process, or removes any forest-produce;

(g)

dears, cultivates or breaks up any land for cultivation or any oilier purpose; or

(h)

in contravention of any rules made by the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

, hunts, shoots, fishes, poisons water or sets traps or snares;

(i)

damages, alters or removes any wall, ditch, embankment, fence, hedge or railing;

[shall, in addition to such compensation for damage done to the forest as the convicting Court may direct to be paid, be punished -]

[Substituted for the words 'shall be punished with imprisonment for a term which may extend to six months, or with fine, which may extend to five hundred rupees, or with both, in addition to such compensation for damage done to the forest as the convicting court may direct to be paid' by section 2 of the Tamil Nadu Forest (Amendment) Act, 1961 (Tamil Nadu Act 36 of 1961).]

(1)

[in any case where any of the acts aforesaid relates to any scheduled timber, with imprisonment for a term which may extend to [five years]

[Substituted by Tamil Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979).]

and with fine which may extend to [twenty thousand rupees]

[Substituted for the words 'ten thousand rupees' by the Tamil Nadu Forest (Amendment) Act, 1972.]

Provided that, -

(a)

for a first offence, the term of such imprisonment shall not be less than [two year]

[Substituted for the words 'one year' by the Tamil Nadu Forest (Amendment) Act, 1972 (Tamil Nadu Act 44 of 1992).]

and such fine shall not be less than [seven thousand and five hundred rupees]

[Substituted for the words 'three thousand rupees' by the Tamil Nadu Forest (Amendment) Act, 1972 (Tamil Nadu Act 44 of 1992).]

;

(b)

for a second or subsequent offence, the term of such imprisonment shall not be less than [three years]

[Substituted for the words 'two years' by the Tamil Nadu Forest (Amendment) Act, 1972 (Tamil Nadu Act 44 of 1992).]

and such fine shall not be less than [fifteen thousand rupees]

[Substituted for the words 'five thousand rupees' by the Tamil Nadu Forest (Amendment) Act, 1972 (Tamil Nadu Act 44 of 1992).]

;

(2)

in any other case, with imprisonment for a term which may extent to six months or with fine which may extend to five hundred rupees, or with both.

Acts exempted from prohibition contained. - Nothing in this section shall be deemed to prohibit-

(a)

any act done in accordance with any rule made, by the Government or with the permission in writing of the District Forest Officer, or of an officer authorised by him to grant such permission; or

(b)

the exercise of any right continued under section 12 or created by grant or contract in the manner described in section 18:

Provided that this section shall not be held to interfere with such working of the forest as may be ordered by the District Forest Officer.

22.

Suspension of rights in reserved forests.

- Whenever fire is caused willfully or negligently in a reserved forest, the Government may (notwithstanding that a penalty has been inflicted under section 21) direct that in such forest or any portion thereof the exercise of all rights of pasture or to forest-produce shall be suspended for such period as it thinks fit.

23.

Persons bound to assist Forest-officer and Police-officer.

- Every person who exercises any right in a reserved forest, or who is permitted to take any forest produce from, or to cut and remove timber or to pasture cattle in, such forest; and every person who is employed by any such person in such forest; and every village-officer or person in any village contiguous to such forest who is employed by the Government; shall be bound to furnish without unnecessary delay to the nearest Forest Officer or Police Station House-Officer any information he may possess respecting the occurrence of a fire in or near such forest or the commission of, or intention to commit any forest offence; and shall assist any Forest-Officer or Police Officer demanding his aid-

(a)

in extinguishing any fire occurring in such forest;

(b)

in preventing any fire which may occur in the vicinity of such forest from spreading to such forest;

(c)

in preventing the commission in such forest of any forest offence; and

(d)

when there is reason to believe that any such offence has been committed in such forest in discovering and arresting the offender.

24.

Power to declare forest no longer reserved.

- The Government may [xxx]

[The words 'Subject to the control of the Governor-General in Council' were omitted by the Adaptation Order of, 1937.]
by notification in the [Official Gazette]

[Several notifications under this power have been issued, but they are so numerous and liable to seen frequent change that it is unnecessary to note them here.]

direct that from a date to be fixed by such notification, any forest or any portion thereof reserved under this Act shall cease to be reserved.

From the date so fixed, such forest or portion shall cease to be reserved; but the rights (if any) which have been extinguished therein shall not revive in consequence of such cessation.

25.

Forests reserved previous to the passing of this Act.

- The Government may, by notification in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

, declare any forest which has been reserved by order of the Government previous to the day on which this Act comes into force to be a reserved forest under this Act:

Provided that if the rights of the Government or of private persons to or over any land or forest-produce in such forest have not been inquired into, settled and recorded in manner which the Government thinks sufficient, the same shall be inquired into settled and recorded in the manner provided by this Act for reserved forest, before the date on which the notification declaring the forest to be reserved takes effect.

All questions decided, orders issued and records prepared in connection with the reservation of such forest shall be deemed to have been decided, issued and prepared hereunder, and the provisions of this Act relating to reserved forest shall apply to such forests.

Chapter III

Protection of Land at the Disposal of Government not included in Reserved Forests

26.

Power to make rules.

- Subject to all rights now legally vested in individuals and communities, the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of

1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may, for any district or portion of a district, make rules to regulate the use or the pasturage or of the natural produce of land at the disposal of [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

and not included in a reserved forest. Such rules may, with respect to such land, -

(a)

regulate or prohibit the clearing or breaking up of land for cultivation or other purposes;

(b)

regulate or prohibit the kindling of fires, and prescribe the precautions to be taken to prevent the spreading of fires;

(c)

regulate or prohibit the cutting, sawing, conversion and removal of trees and timber and the collection and removal of natural produce;

(d)

regulate or prohibit the quarrying of stone, the boiling of catechu, or the burning of lime or charcoal;

(e)

regulate or prohibit the cutting of grass and pasturing of cattle, and regulate the payments (if any) to be made for such cutting or pasturing;

(f)

regulate or prohibit hunting, shooting, fishing, poisoning water and setting traps or snares;

(g)

regulate the sale or free grant of timber or other natural produce; and

(h)

prescribe the fees, royalties or other payments for such timber or other natural produce, and the manner in which such fees, royalties or other payments shall be levied:

[xxx]

[Omitted by the Tamil Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979).]

Provided that the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may exempt any person or class of persons from the operation of all or any of such rules.

27.

Power to close land against pasture.

- Whenever fire is caused willfully or negligently in any land to which all or any of the rules made under section 26 have been extended, the Government may, notwithstanding that a penalty has been inflicted under that section, direct that such land be closed against pasture for such period as it thinks fit:

Provided that an area sufficient in extent and in a locality reasonably convenient is left open for the use of persons having rights of pasture an such land.

28.

Penalties.

- Whoever pastures cattle or permits cattle to trespass in land closed under section 27 shall be punished with imprisonment for a term which may extend to one month, or with fine which may extend to two hundred rupees, or with both.

28A.

[Penalties for breach of rules made under section 26.

[Inserted by Tamil Nadu Forests (Amendment) Act, 1979 (Tamil Nadu Act of 45 of 1979).]

- Whoever infringes any rules made under section 26 shall be punished,-

(1)

in any case where such infringement relates to any scheduled timber, with imprisonment for a term which may extend to [five years] and with fine which may extend to [twenty thousand rupees]

[Substituted for the words 'ten thousand rupees' by the Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44

of 1992).]

:

Provided that, -

(a)

for a first offence, the term of such imprisonment shall not be less than [two years]

[Substituted for the words 'one year' by the Tamil Nadu Forest (Amendment) Act, 1992.]

and such fine shall not be less than [seven thousand and five hundred rupees]

[Substituted for the words 'three thousand rupees' by the Tamil Nadu Forest (Amendment) Act, 1992.]

;

(b)

for a second or subsequent offence, the term of such imprisonment shall not be less than [three years]

[Substituted for the words 'two years' by the Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

and such fine shall not be less than [fifteen thousand rupees]

[Substituted for the words 'five thousand rupees' by the Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

.

(2)

In any other case, with imprisonment for a term which may extend to one month, or with fine which may extend to two hundred rupees, or with both.]

Chapter IV

Of the Control over Forests and Lands not at the Disposal of Government or in Which Government has a Limited Interest

29.

On certain lands, the breaking up or clearing for cultivation, etc. may be regulated or prohibited.

- The [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may, from time to time, by notification in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

and in the Official Gazettes of the districts affected thereby regulate or prohibit in any forest wasteland not at the disposal of Government -

(a)

the breaking up or clearing of land for cultivation;

(b)

the pasturing of cattle;

(c)

the firing or clearing of the vegetation;

when such regulation or prohibition appears to be necessary for any of the following purposes:-

First. - for protection against storms, winds, rolling stones, floods and avalanches;

Second. - for the preservation of the soil on the ridges and slopes, and in the valleys, of hilly tracts, the prevention of landslips and of the formation of ravines and torrents and the protection of land against erosion, or the deposit thereon of sand, stones or gravel;

Third. - for the maintenance of a water-supply in springs, rivers and tanks;

Fourth. - for the protection of roads, bridges, railways and other lines of communication;

Fifth. - for the preservation of the public health; and may alter or cancel such notification.

The Government may, for any such purpose, construct at their own expense, in or upon any such forest or land, such works as they think fit:

Provided that no such notification shall be made or work begun, until after the issue of a notice to the owner of such forest or land calling upon him to show cause, within a reasonable period to be specified in such notice, why such notification should not be made or work constructed, and until his objections (if any) and any evidence he may produce

in support of the same have been heard by an officer duly appointed in that behalf, and have been considered by the Government.

30.

In case of refusal by owner, Government may take such lands on lease or acquire them.

- Whenever the owner of such forest or land may decline to comply with the regulations or directions contained in the said notification, it shall be incumbent upon the Government, if they resolve to assume control of the said forest or land, to take the said forest or land, or so much of it as they may see fit, on lease from the owner for such term as they may deem it necessary to retain the same under control, and the owner shall be bound either to conclude such lease with the Government or to require that such forest or land shall be acquired for public purposes, and in the latter event, the Government shall acquire such forests or land accordingly. If such lease is agreed upon, the amount of annual rent to be reserved, and all other questions arising between the owner or persons claiming to be owners and the Government shall, in case of dispute, be determined in accordance, so far as may be, with the provisions of the [Land Acquisition Act, 1870 (Central Act X of 1870)]

[See now the Land Acquisition Act, 1894 (Central Act 1 of 1894).]

.

31.

Acquisition of forest or land under the Land Acquisition Act.

- In any case under this Chapter in which the Government consider that, in lieu of taking the forest or land under its control, the same should be acquired for public purposes, the Government may proceed to acquire it in the manner prescribed by the [Land Acquisition Act, 1870 (Central Act X of 1870)]

[See now the Land Acquisition Act, 1894 (Central Act 1 of 1894).]

.

32.

Protection of forest at request of owners.

- The owner of any land or, if there be more than one owner thereof, the owners of shares therein, whether divided or not, amounting in the aggregate to at least two-thirds thereof, may, with a view to the formation or conservation of forests thereon represent in writing to the Collector their desire-

(a)

that such land be managed on their behalf by the District Forest Officer, as a reserved forest, on such terms as may be agreed upon; or

(b)

that such land be managed subject to the control of the Collector by a person appointed by themselves and approved by the Collector; or

(c)

that all or any of the provisions of this Act or rules made thereunder be applied to such land.

The Government may, in any such case, by notification in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

, apply to such land such provisions of this Act as it thinks suitable to the circumstances thereof and as may be desired by the applicants.

Any such notification may be altered or cancelled by a like notification.

33.

Management of forests, the joint property of Government and other persons.

- If the Government and any person or persons are jointly interested in any forest or waste-land, or in the whole or any part of the produce thereof, the Government may either-

(a)

undertake the management of such forest, waste-land or produce, accounting to such person for his interest in the same; or

(b)

issue such regulations for the management of the forest, waste-land or produce by the persons so jointly interested as it deems necessary for the management thereof and the interests of all parties therein.

When the Government undertakes under clause (a) of this section, the management of any forest, waste-land or

produce, it may, by notification in the 2[Official Gazette and in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

of the district, declare that any of the provisions contained in Chapters II and III of this Act shall apply to such forest, waste-land or produce, and thereupon, such provisions shall apply accordingly.

34.

Persons employed to carry out the Act to be deemed Forest Officers.

- All persons employed under sections 30, 32 and 33 to carry out the provisions of this Act shall be deemed to be Forest Officers within the meaning of this Act.

[The [Government]

[Added by section 4 of the Madras Forest (Amendment) Act, 1936 (Madras Act VII of 1936).]

shall also have power to appoint any person to discharge any functions of a Forest Officer under any of the provisions of this Act which have been extended to any land or to any forest or waste-land or produce thereof by a notification under section 32 or section 33 or under any rule made in pursuance of any provision so extended].

Chapter V

Control of Timber in Transit

35.

Power to make rules to regulate transit of timber.

- The [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may make rules to regulate the transit of all timber or of certain classes of timber within local limits as may appear to be necessary. Such rules may (among other matters) -

(a)

prescribe the routes by which alone timber may be imported into, and exported from, the [State of Tamil Nadu]

[Substituted for the expression 'Presidency of Madras' by the Tamil Nadu. Adaptation of Laws Order, 1970, which ms deemed to have come into force on the 14th January 1969.]

;

(b)

prohibit the import and export or moving within defined local limits of timber without a pass from the landholder from whose lands it was brought, or from an officer duly authorised to issue the same or otherwise than in accordance with the conditions of such pass;

(c)

prescribe the form of such passes and provide for their issue, production and return;

(d)

provide for the stoppage, reporting, examination and marking of timber in transit within defined local limits or at stations established as hereinafter provided;

(e)

establish or authorise the Collector to establish stations to which such timber shall be taken by those in charge of it for examination or marking; and the conditions under which such timber shall be brought to, stored at, and removed from, such station;

(f)

provide for the management and control of such stations, and for regulating the appointment and duties of persons employed thereat;

(g)

authorize the transport of timber, the property of Government, across any land, and provide for the payment of compensation for any damage done by the transport of such timber;

(h)

prohibit the closing up or obstructing of the channel or banks of any river used for the transit of timber or other forest-produce and the throwing of grass, brushwood, branches and leaves into any such river, or any act which may cause such river to be closed or obstructed;

(i)

provide for the prevention and removal of any obstruction of the channel or banks of any such river, and for recovering the cost of such prevention or removal from the person, or by the sale of any timber, causing such obstruction;

(j)

provide for the protection of bridges, locks or other public works, by regulating the floating of timber and the storing of timber on river banks and by authorising the seizure of timber floated or stored in contravention of such rules or by which any damage to such works may have been caused, and the detention and disposal of such timber until compensation has been made for the damage done;

(k)

regulate the use of property-marks for timber and the registration of such marks; declare the circumstances in which the registration of any property-marks may be refused or cancelled; prescribe the time for which such registration shall hold good; limit the number of such marks that may be registered by any one person; and provide for the levy of fees for such registration;

(l)

[provide for the maintenance of accounts in respect of any [scheduled timber]

[Added by section 4 of the Tamil Nadu Forest (Amendment) Act, 1961 (Tamil Nadu Act 36 of 1961).]

stored in private lands, depots, markets or factories, for industrial or commercial purposes.]

35A.

[Power of Central Government to movements of timber across frontiers.

[Inserted by the Adaptation Order of 1937.]

- Notwithstanding anything in section 35, the Central Government may make rules to prescribe the route by which alone timber may be imported and exported across any customs frontier as defined by the Central Government and any rules made under section 35 shall have effect subject to the rules made under this section.]

35B.

[Penalties for breach of rules made under section 35 in respect of scheduled timber.

[Inserted by Tamil Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979).]

- Whoever infringes any rules, in relation to any scheduled timber, made under section 35 (not being a rule made under clause (a) of that section) shall be punished with imprisonment for a term which may extend to [five years] and with fine which may extend to [twenty thousand rupees]

[Substituted for the words 'ten thousand rupees' by the Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

:

Provided that -

(a)

for a first offence, the term of such imprisonment shall not be less than [two years]

[Substituted for the words 'one year' by the Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

and such fine shall not be less than [seven thousand and five hundred rupees]

[Substituted for the words 'three thousand rupees' by the Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

;

(b)

for a second or subsequent offence, the term of such imprisonment shall not be less than [three years]

[Substituted for the words 'two years' by the Tamil Nadu Forest (Amendment) Act, 1992.]

and such fine shall not be less than [fifteen thousand rupees]

[Substituted for the words 'five thousand rupees' by the Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

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36.

Penalties for breach of rules made under sections 35 and 35-A.

- The [Central or, as the case may be, State Government]

[The word 'Central or as the case may be Provincial Government' were substituted for the word 'Government' by the Adaptation Order 1937 and the word 'State' was substituted for 'Provincial' by the Adaptation Order of 1950.]

may, by such rules, prescribe as penalties for the infringement thereof imprisonment for a term which may extend to one month, or fine which may extend to two hundred rupees, or both.

[xxx]

[Inserted by section 5 of the Tamil Nadu Forest (Amendment) Act, 1961 (Tamil Nadu Act 36 of 1961) and Omitted by Tamil Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979).]

[Chapter V-A]

[Chapter V-A was inserted by section 6 of the Tamil Nadu Forest (Amendment) Act, 1961 (Tamil Nadu Act 36 of 1961).]

Possession of Sandalwood

36A.

Possession of sandalwood under licence.

- No person shall have in his possession any quantity of sandalwood in excess of five kilograms, unless under a licence granted by the District Forest Officer in that behalf or unless such sandalwood is affixed by a Forest Officer with such marks and in such manner as may be prescribed:

Provided that the District Forest Officer may refuse to grant or renew a licence to any applicant or licensee in respect of whom he is satisfied that by reason of his conviction of an offence under this Act or the rules thereunder, or the previous cancellation or suspension of any licence granted thereunder, or the contravention of any of the requirements as to the possession of sandalwood, or for any other reasons which may be prescribed, he is not a fit person to whom a licence should be granted or renewed under this section. Every such order shall be communicated to the applicant or the licensee, as the case may be, as soon as possible.

36B.

Form and conditions of licence.

- The Government may make rules to provide for-

(a)

the form and manner in which applications for licences may be made;

(b)

the terms and conditions which may be included in any licence and the fees for the grant of such licence;

(c)

the grant of duplicate licences and the renewal of licences and fees for the same.

36C.

Power to cancel or suspend licence.

- The District Forest Officer may cancel or suspend any licence granted under this Chapter if it appears to him, after giving the holder thereof an opportunity of being heard, that the licensee has contravened, or failed to comply with, any of the provisions of this Act or the rules made thereunder or any of the terms or conditions of the licence.

36D.

Appeal.

- Any person aggrieved by the decision of the District Forest Officer refusing to grant or renew or cancelling or suspending a licence under this Chapter may, within such time as may be prescribed, appeal to the Collector and the Collector may make such order in the case as he may think fit.

36E.

Penalties.

- Whoever, in contravention of this Chapter or of any rule made or licence granted thereunder, possesses sandalwood, shall be punished [with imprisonment for a term which may extend to [five years]

[Substituted for the words 'with imprisonment for a term which may extend to one year and with fine which may extend to ten thousand rupees' by Tamil Nadu Forest (Amendment) Act, 1979.]

and with fine which may extend to [twenty thousand rupees]

[Substituted for the words 'one year' by Tamil Nadu Forest (Amendment) Act, 1992.]

]:

Provided that-

(a)

for a first offence, the term of such imprisonment shall not be less than [two years]

[Substituted for the words 'one year' by Tamil Nadu Forest (Amendment) Act, 1992.]

and such fine shall not be less than [seven thousand and five hundred rupees]
[Substituted for the words 'one year' by Tamil Nadu Forest (Amendment) Act, 1992.]

;

(b)
for a second or subsequent offence, the term of such imprisonment shall not be less than [three years]
[Substituted for the words 'one year' by Tamil Nadu Forest (Amendment) Act, 1992.]

and such fine shall not be less than [fifteen thousand rupees]
[Substituted for the words 'one year' by Tamil Nadu Forest (Amendment) Act, 1992.]

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36F.

[Rights and sale of sandalwood tree grown on private lands.
[Inserted by Tamil Nadu Forest (Amendment) Act, 1998 (Tamil Nadu Act 33 of 2002).]

(1)
Every person who grows sandalwood tree on any patta land held by him as owner, tenant, lessee, mortgagee with possession or otherwise, shall be the owner of such sandalwood tree.

(2)
No sandalwood tree grown on any patta land shall be sold or otherwise alienated to any person other than the Government:

Provided that nothing contained in this sub-section shall apply sandalwood tree at any auction held by the Government.

(3)
The Government may make rules for the purpose of,-

(a)
prescribing the form and the manner in which application for sale of sandalwood tree to the Government shall be made;

(b)
verification of ownership of sandalwood tree on patta land;

(c)
extraction and processing of sandalwood tree grown on patta land;

(d)
fixation of price of sandalwood tree grown on patta land and payment to the owners of such sandalwood tree.]

Chapter VI

The Forest Court

37.
Appointment and constitution of the Forest Court.
- Where no Revenue Officer has been appointed to hear appeals under section 14, [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

shall, from time to time, as occasion may arise, appoint a Forest Court to hear such appeals. The Court shall consist of three members, of whom, -

one shall be the Judge of the Court of any district in which any portion of the land, the rights in or over which are in dispute, is situated, or the officer presiding in that Principal Civil Court of original jurisdiction of such district;

another shall be the Collector of any such district or an officer of the Revenue Department of not less than 12 years' standing;

and the third member shall be a person specially selected by the Government], not holding an office of profit in the service of the Government.

38.
The Judge appointed to be the President.

- The Judge appointed as a member as aforesaid shall be the President of the said Court, and shall make all such orders in the case as may be necessary prior to the hearing of the appeal.

The official members of the Court may be appointed by name or as holding an office.

39.

Hearing of appeals.

- For the hearing of appeals, the Forest Court shall fix a day and a convenient place in the neighbourhood of the land regarding which, or regarding rights over which, a dispute exists and shall give notice thereof to the parties.

All cases before the Forest Court shall be heard and disposed off, so far as may be, in accordance with the provisions of the Code of Civil Procedure, 1908 (Central Act V of 1908):

Provided that if, on the hearing of any such case, any question of law or of usage having the force of law, or the construction of a document affecting the merits of the case, shall arise on which the Court shall entertain reasonable doubts, the Court may, either of its own motion or on the application of any of the parties, draw up a statement of the case, and submit it, with its own opinion for the opinion of the High Court.

And it shall be the duty of the Forest Court to make such reference to the High Court if the questions involve any principle of general importance or affect the rights of a class.

40.

Court to pass orders which shall be final.

- At the conclusion of the inquiry, and after receipt of the order of the High Court (which shall be binding upon the Forest Court) upon the reference (if any) prescribed by the preceding section, the Forest Court shall proceed to pass such order in the case as it may consider just and proper; and the order passed by the said Court or by the majority of the members of the said Court shall be final.

[Chapter VI-A]

[Inserted by section 4 of the Tamil Nadu Forest (Amendment) Act, 1965 (Tamil Nadu Act 40 of 1965).]

Of the Collection of Drift and Stranded Timber

40A.

Certain kinds of timber to be deemed property of Government until title thereto proved, and may be collected accordingly.

- All timber found adrift, beached, stranded or sunk, all timber bearing marks which have not been registered under the rules made under section 35 or on which the marks have been obliterated, altered or defaced by fire or otherwise, and in such areas as the Government may direct, all unmarked timber shall be deemed to be the property of Government unless and until any person establishes his right and title thereto, as provided in this Chapter.

(2)

Such timber may be collected by any Forest Officer or other person entitled to collect the same by virtue of any rule made under section 40-F and may be brought to such station as the Forest Officer may, from time to time, notify as a station for the reception of drift timber.

(3)

The Government may, by notification in the Official Gazette, exempt any class of timber from the provisions of this section and may, in like manner, withdraw such exemption.

40B.

Notice to claimants of timber collected under section 40-A.

- Public notice shall, from time to time, be given by the Forest Officer of timber collected under section 40-A. A copy of such notice shall also be published in the Official Gazette and in the Official Gazette of the district. Such notice shall contain a description of the timber, and shall require any person claiming the same to present to such officer, within a period not less than two months from the date of such notice, a written statement of such claim.

40C.

Procedure on claim preferred to such timber.

(1)

When any such statement is presented as aforesaid, the Forest Officer may, after making such inquiry as he thinks fit, either reject the claim after recording his reasons for so doing, or deliver the timber to the claimant.

(2)

If such timber is claimed by more than one person, the Forest Officer may either deliver the same to any such person whom he deems entitled thereto or may refer the claimants to the Civil Court, and retain the timber pending receipt of an order from any such Court for its disposal.

(3)

Any person whose claim has been rejected under this section may, within four months from the date of such rejection, institute a suit to recover possession of the timber claimed by him, but no person shall recover any compensation or

costs against the Government, or against any Forest Officer, on account of such rejection or the detention or removal of any timber, or the delivery thereof to any other person under this section.

(4)

No such timber shall be subject to process of any Civil, Criminal or Revenue Court until it has been delivered or a suit has been brought, as provided in this section.

40D.

Disposal of unclaimed timber.

- If no such statement is presented, as aforesaid, or if the claimant omits to prefer his claims in the manner and within the period prescribed by the notice issued under section 40-B, or on such claim having been so preferred by him and having been rejected, omits to institute a suit to recover possession of such timber within the further period specified in section 40-C, the ownership of such timber shall vest in the Government, or when such timber has been delivered to another person under section 40-C, in such other person free from all encumbrances not created by him.

40E.

Payments to be made by claimant before timber is delivered to him.

- No person shall be entitled to recover possession of any timber collected or delivered as aforesaid until he has paid to the Forest Officer or other person entitled to receive it such sum on account thereof as may be due under any rule made under section 40-F.

40F.

Power to make rules and prescribe penalties.

(1)

The Government may, from time to time, make rules to regulate the following matters, namely:-

(a)

the salving, collection and disposal of all timber mentioned in section 40-A;

(b)

the use and registration of boats used in salving and collecting timber;

(c)

the amounts to be paid for salving, collecting, moving, storing and disposing of such timber;

(d)

the use and registration of hammers and other instruments to be used for marking such timber.

(2)

The Government, may by such rules prescribed, as penalties for the infringement thereof, imprisonment for a term which may extend to six months, or fine which may extend to five hundred rupees or both.

[Chapter VI-B]

[Inserted by section 4 of the Tamil Nadu Forest (Amendment) Act, 1965 (Tamil Nadu Act 40 of 1956).]

Royalties

40G.

Royalties.

(1)

Trees of the following species, that is to say, teak, black-wood, ebony and sandalwood and also ivory and teeth of elephants, whether grown or found on Government land or private property, are royalties and no trade shall be carried on in them unless they have been duly obtained from the Government.

(2)

The trees mentioned in sub-section (1) shall not be felled by any person without the written permission of the Chief Conservator of Forests or such other officer as may be authorised by him in writing, but the owner of any property on which a teak, blackwood, ebony or sandalwood tree is standing may, after obtaining the written permission of the Chief Conservator of Forests or other officer authorised by him as aforesaid, and on such terms as the Government may determine, fell any such tree for his private use, and when any such tree is removed from such property on account of the Government, the owner shall be entitled to a payment (hereinafter referred to in this Chapter as kudivila) at rates which the Government may, from time to time, determine.

Exception. -This section shall not apply to trees in places where royalty in trees has been abolished by Proclamations (Travancore), dated 11th January 1936 and the 25th August 1941.

40H.

Notice of proposed to cut and remove royalty trees.

- When it is proposed to cut and remove any royalty trees from private lands by Government agency, notice in the prescribed form shall be given to the registered holder of the land from which the trees are proposed to be cut and removed. Such notice may be sent by registered post to the registered holder of the land and shall also be pasted in the village and taluk offices.

40I.

Joint mahazar to be prepared before removal of the trees.

- Before any such trees are removed, a joint mahazar shall be prepared in the prescribed form by a Forest Officer not below the rank of a Forester in conjunction with the local village officer and whenever possible in the presence of the registered holder of the land or his authorised agent who shall also attest the mahazar. Notice as to when the trees are proposed to be removed and when the joint mahazar is proposed to be prepared shall be given to the registered holder of the land. Such notice may be sent by registered post.

40J.

Notice calling claims for kudivila.

- After the preparation of the joint mahazar referred to in section 40-1, another notice in the prescribed form shall be published by pasting in the village and taluk offices and on some conspicuous part of the land from which the trees are cut, calling upon all claimants to prefer their claims to kudivila within ninety days from the date of publication of such notice to the Forest Officer empowered for the purpose and to produce all documents and other evidence in support of their claims.

40K.

Inquiry by Forest Officer into claims for kudivila.

(1)

When a claim has been preferred as required by section 40-J, the Forest Officer empowered in that behalf shall inquire into such claims recording all statements and the evidence in the manner prescribed by the Code of Civil Procedure, 1908 (Central Act V of 1908) in appealable cases.

(2)

When no such claim has been preferred as required in section 40-J, the inquiry shall be conducted ex-party.

(3)

For the purpose of such inquiry, the Forest Officer aforesaid may exercise all the powers of a Civil Court in the trial of suits.

40L.

Award to be made after inquiry.

(1)

On the completion of the inquiry by the Forest officer under section 40-K, he shall make an award under his hand of-

(a)

the kudivila which in his opinion shall be allowed; and

(b)

the apportionment of the kudivila so allowed among all the persons interested in the land of whose claims there is evidence whether they have appeared before him or not.

(2)

The award shall be filed in the office of the Forest Officer and shall be final except as hereinafter provided. Notice of the award shall forthwith be given to all the parties who are interested.

40M.

Reference to Court.

(1)

Any party to the inquiry who is aggrieved by the award may, by written application to the Forest Officer making such award, require that the matter be referred to the District Court, within whose jurisdiction the land is situated, whether his objection be to the amount of the kudivila, the person to whom it is payable, or the apportionment of the kudivila, and the Forest Officer shall refer the application to the District Court within sixty days of the date of application.

(2)

The application shall state the grounds on which objection to the award is taken and shall be made within sixty days of the date of the receipt of the notice of the award.

(3)

If on account of the complicated nature of the claim or for other reason, the Forest officer is of opinion that a reference has to be made to the District Court, he may himself refer the matter to be decided by the District Court within whose jurisdiction the land is situated.

40N.

Forest Officer's statement to Court.

(1)

In making the reference, the Forest Officer shall state, for the information of the District Court, in writing under his hand-

(a)

the extent and situation of the land, with particulars of the trees cut and removed;

(b)

the names of the persons whom he has reason to think are interested in such land;

(c)

the amount of kudivila; and

(d)

if the objection be as to the amount of kudivila, the grounds on which it was determined.

(2)

To the said statement shall be attached a schedule giving the particulars of the notice served upon, and of the statements in writing made or delivered by, the parties interested and the evidence adduced by them.

40O.

Service of notice.

- The District Court shall, thereupon, cause a notice specifying the day on which the Court shall proceed to determine the objection and directing their appearance before the Court on that day, to be served on the following, namely:-

(a)

the applicant,

(b)

all persons interested in the inquiry, and

(c)

the Government.

40P.

Scope of the inquiry.

- The scope of the inquiry in every such proceeding shall be restricted to a consideration of the interest of the persons affected and every such proceeding shall be taken in open Court.

40Q.

Form of award by Court.

- Every award made by the Court shall be in writing signed by the Judge, and shall specify the amount of the kudivila awarded and the respective persons to whom it shall be payable. Against the award made by the District Court, an appeal shall lie to the High Court.

40R.

Tendering payment.

- On making an award under section 40-L, the Forest Officer shall tender payment of the kudivila awarded by him to the persons entitled thereto according to the award, and shall pay it to them, unless they refuse to receive it, or there is any dispute as to the title to receive the kudivila or as to the apportionment thereof.

40S.

Forest Officer to carry out the Court's awards as his own.

- If the award made by the Forest Officer is reversed or modified either by the District Court or by the High Court, the Forest Officer shall proceed to deal with it in like manner as if it had been in the first instance made by himself.

40T.

Bar of claims to kudivila.

- No claims to kudivila preferred after three years from the date of publication of the notice mentioned in section 40-J shall be admitted by the Forest Officer nor shall any such claims be entertained in Court of law except for references under section 40-M.

40U.

Rules to be made by Government.

- The Government may make rules regulating or prohibiting the felling, lopping, cutting, maiming, or otherwise maltreating of any tree which is a royalty or any other tree standing on land temporarily or permanently assigned, the right of the Government over which has been expressly reserved in the deed of grant or assignment of such land.

40V.

Punishment for felling, etc., trees which are royalties.

(1)

Whoever-

(a)

fells, girdles, lops, marks, mutilates, or otherwise damages any tree which is a royalty, in contravention of the rules made by the Government, or

(b)

fells such trees in places other than those for which he has obtained permission from a Forest Officer, or in quantities larger than, or different in kind from, those so permitted, or

(c)

is found in possession of such trees, or of any forest produce which is a royalty without having honestly obtained it, shall, on conviction by a Magistrate, be liable to imprisonment which may extend to six months, or to fine which may extend to five hundred rupees, or to both.

(2)

In cases where the offence is committed after sunset and before sunrise, or after making preparation for resistance to the execution of any law or any legal process, or where the offender has been previously convicted of a like offence, the convicting Magistrate may inflict double the penalty prescribed for such offence.

40W.

Other provision not effected.

- The provisions of this Chapter shall be in addition to, and not in derogation of, the other provisions of this Act.

Chapter VII

Penalties and Procedure

41.

Seizure of property liable to confiscation.

- [(1)]

[Numbered by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

When there is reason to believe that a forest offence has been committed in respect of any timber or forest- produce, such timber or produce, together with all tools, ropes, chains, boats, [vehicles]

[Substituted for the word 'carts' by section of the Tamil Nadu Forest (Amendment) Act, 1963 (Tamil Nadu Act VII of 1936).]

and cattle used in committing any such offence, may be seized by any Forest Officer or Police Officer.

(2)

[Any Forest Officer or Police Officer may, if he has reason to believe that a vehicle has been, or it being used for the transport of any scheduled timber in respect of which there is reason to believe that a forest offence has been or is being committed, require the driver or other person in-charge of such vehicle to stop the vehicle and cause it remain stationery as long as may reasonably be necessary for examination of the contents in the vehicle and inspection of all records relating to the scheduled timber and in possession of such driver or other person in-charge of the vehicle or any other person in the vehicle:]

[Inserted by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

[xxx]

[The words 'Report to Magistrate' was omitted Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

(3)

Every officer seizing any property under this section shall place on such property or the receptacle (if any) in which it is contained a mark indicating that the same has been so seized and shall, as soon as may be, [make a report of such seizure, -

(a)

where the offence on account of which the seizure has been made is in respect of the scheduled timber which is the property of the Government or in respect of which the Government have any interest, to the concerned authorised officer under section 49-A; and

(b)

in other cases, to the [Magistrate] having jurisdiction to try the offence on account of which the seizure has been made:] Provided that, when the timber or forest-produce with respect to which such offence is believed to have been committed is the property of [the Central or State Government]

[The words 'the Crown' was substituted for the word 'Government' by the Adaptation Order of 1937 and the words 'Central or State Government' were substituted for 'Crown' by the Adaptation (Amendment) Order of 1950.]

and the offender is unknown, it shall be sufficient if the officer makes, as soon as may be, a report of the circumstances to his official superior.

42.

Procedure thereupon.

- [(1) Upon the receipt of any such report, the [Magistrate]

[Section 42 was re-numbered as sub-section (1) of section 42 and sub-section (2) was added to that section by the Tamil Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979).]

shall take such measure as may be necessary for the trial of the accused and the disposal of the property according to law.

(2)

[Sub-section (2) was added by Tamil Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979 and was omitted by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

[Substituted for the word '[make a report of such seizure to the Magistrate having jurisdiction to try the offence on account of which the seizure has been made]' by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

43.

Timber, forest-produce, tools, etc., when liable to confiscation.

- When any person is convicted of a forest offence, all timber or forest-produce in respect of which such offence has been committed, and all tools, ropes, chains, boats, [vehicles]

[Substituted for the word 'carts' by section of the Madras Forest (Amendment) Act, 1963 (Madras Act VII of 1936).]

and cattle used in committing such offence, [[shall, subject to section 49-G, be confiscated]

[Substituted for the words 'shall be liable, by order of the convicting Magistrate, to confiscation' by section 1 of the Tamil Nadu Forest (Amendment) Act, 1961 (Tamil Nadu Act 36 of 1961).]

to the Government].

[xxx]

[The words 'such confiscation may be in addition to any other punishment prescribed for such offence' were omitted by Tamil Nadu Forest (Amendment) Act, 1961 (Tamil Nadu Act 36 of 1961).]

44.

Disposal, on conclusion of trial for forest-offence, of produce in respect of which it was committed.

- When the trial of any forest-offence is concluded, any timber or forest-produce in respect of which such offence has been committed shall, if it is the property of [the Central or State Government]

[The words 'the Crown' was substituted for the word 'Government' by the Adaptation Order of 1937 and the words 'Central or State Government' were substituted for 'Crown' by the Adaptation (Amendment) Order of 1950.]

or has been confiscated, be taken possession of by or under the authority of the District Forest Officer, and [in any other case may, subject to section 49-G, be disposed]

[Substituted for the words 'in any other case may be disposed' by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

be disposed of in such manner as the Court may order.

45.

Procedure when offender is not known or cannot be found.

- When the offender is not known or cannot be found, the Magistrate, if he is of opinion [that an offence has been committed, subject to section 49-G]

[Substituted for the words 'that an offence has been committed' by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

may, on application in this behalf, order the property in respect of which the offence has been committed to be confiscated and taken possession of by or under the authority of the District Forest Officer, or to be made over to any person whom the [Magistrate]

[Now, judicial Magistrate.]

considers to be entitled to the same:

Provided that no such order shall be made until the expiration of one month from the date of seizing such property, or without hearing the person (if any) claiming any right thereto, and the evidence (if any) which he may produce in support of his claim.

The Magistrate shall cause a notice of any application under this section to be served upon any person whom he has reason to believe is interested in the property seized, or shall publish such notice in any way which he things fit.

46.

[Procedure in regard to perishable property seized under section 41.

[Substituted for the original section 46 by section 6 of the Tamil Nadu Forest (Amendment) Act, 1936 (Tamil Nadu Act VII of 1936).]

(1)

Notwithstanding anything hereinbefore contained-

(a)

the [Magistrate] may direct the sale of any property seized under section 41 which is subject to speedy and natural decay; and

(b)

if, in the opinion of the officer seizing such property, it is not possible to obtain the orders of the [Magistrate]

[Now, Judicial Magistrate.]

under clause (a) in time, such officer may sell the property himself, remit the sale proceeds into the nearest Government treasury, and make a report of such seizure, sale and remittance to the Magistrate and, thereupon, the [Magistrate]

[Now, Judicial Magistrate.]

shall take such measures, as may be necessary for the trial of the accused.

(2)

The [Magistrate]

[Now, Judicial Magistrate.]

may deal with the proceeds of the sale of any property held under clause (a) or clause (b) of sub-section (1) in the same manner, as he might have dealt with the property if it had not been sold.]

47.

Appeal from orders under section 43, 44 or 45.

- Any person claiming to be interested in property seized under section 41 may, within one month from the date of any order passed under section 43,44, or 45, present an appeal therefrom which may be disposed of in the manner provided by section 419,[Code of Criminal Procedure, 1898.]

[See now Code of Criminal Procedure, 1973 (Central Act 2 of 1974).]

48.

Property when to vest in the State.

- When an order for the confiscation of any property has been passed under section 43 or 45 and the period limited by section 47 for presenting an appeal from such order has elapsed, and no such appeal has been presented, or when on such an appeal being presented, the Appellate Court confirms such order in respect of the whole or a portion of such property, such property or portion, as the case may be, shall vest in the [State]

[Substituted by the Adaptation (Amendment) Order of 1950 for the words 'Crown for the purpose of the Province' as substituted by the Adaptation (Amendment) Order of 1950.]

free from all encumbrances.

49.

Saving of power to release property seized.

- Nothing hereinbefore contained shall be deemed to prevent the [District Forest Officer subject to section 49-G]
[Substituted by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

from directing at any time the immediate release of any property seized under section 41 and the withdrawal of any charge made in respect of such property.

49A.

[Confiscation by Forest Officers in certain cases.

[Inserted by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

(1)

Notwithstanding anything contained in the foregoing provisions of this Chapter or in any other law for the time being in force, where a forest offence is believed to have been committed in respect of any scheduled timber which is the property of the Government, the officer seizing the property under, sub-section (1) of section 41 shall, without any unreasonable delay, produce it together with all tools, ropes, chains, boats, vehicles and cattle used in committing such offence, before an officer not below the rank of an Assistant Conservator of Forests authorised by the Government in this behalf, by notification, in the Tamil Nadu Government Gazette (hereinafter referred to as the authorised officer).

(2)

Where the authorised officer himself seizes, under sub-section (1) of section 41, any scheduled timber which is the property of the Government or where any such property is produced before the authorised officer under sub-section (1) and he is satisfied that a forest offence has been committed in respect of such property, such authorised officer may, whether or not a prosecution is instituted for the commission of such forest offence, order confiscation of the property so seized together with all tools, ropes, chains, boats, vehicles and cattle used in committing such offence.

(3)

(a)

Where the authorised officer after passing an order of confiscation under sub-section (2) is of the opinion that it is expedient in the public interest so to do, he may order the confiscated property or any part thereof to be sold by public auction.

(b)

Where any confiscated property is sold as aforesaid, the proceeds thereof after deduction of the expenses of any such auction of other incidental expenses relating thereto shall, where the order of confiscation made under this section is set aside or annulled by an order under section 49-C or, section 49-D, be paid to the owner thereof or to the person from whom it was seized as may be specified in such order.

49B.

Issue of show-cause notice before confiscation under section 49-A.

(1)

No order confiscating any scheduled timber, or tools, ropes, chains, boats, vehicles or cattle shall be made under section 49-A except after notice in writing to the person from whom it is seized informing him of the grounds on which it is proposed to confiscate it and considering his objections, if any:

Provided that no order confiscating a motor vehicle shall be made except after giving notice in writing to the registered owner thereof, if, in the opinion of the authorised officer it is practicable to do so and considering his objections, if any.

(2)

Without prejudice to the provisions of sub-section (1), no order confiscating any tool, rope, chain, boat, vehicle or cattle shall be made under section 49-A if the owner of the tool, rope, chain, boat, vehicle or cattle proves to the satisfaction of the authorised officer that it was used in carrying scheduled timber without the knowledge or connivance of the owner himself, his agent, if any, and the person in charge of the tool, rope, chain, boat, vehicle or cattle and that each of them had taken all reasonable and necessary precautions against such use.

49C.

Revision.

- Any Forest officer not below the rank of Conservator of Forests specially empowered by the Government in this behalf, by notification in the Tamil Nadu Government Gazette may, of his own motion, call for and examine the records of the

authorised officer in respect of any order under section 49-A, make such inquiry or cause such inquiry to be made and pass such orders as he deems fit:

Provided that no revision proceeding shall be initiated by such officer under this section against any order passed under section 49-A, if the time for appeal against that order has not expired:

Provided further that no order prejudicial to any person shall be passed under this section unless such person has been given an opportunity of making his representations.

49D.

Appeal.

(1)

Any person aggrieved by any order passed under section 49-A or section 49-C may, within thirty days from the date of communication to him of such order, appeal to the Sessions Judge having jurisdiction over the area in which the property, to which the order relates, has been seized and the Sessions Judge shall, after giving an opportunity of being heard to the appellant and the authorised officer or the officer specially empowered under section 49-C, as the case may be, pass such order as he may think fit, confirming, modifying or annulling the order appealed against.

(2)

An order of the Sessions Judge under sub-section (1) shall be final and shall not be questioned in any court of law.

49E.

Award of confiscation no bar for infliction of any punishment.

- The award of any confiscation under section 49-A or section 49-C or section 49-D shall not prevent the infliction of any punishment to which the person affected thereby is liable under this Act.

49F.

Property confiscated to vest with Government.

- When an order for confiscation of any property has been passed under section 49-A or section 49-C or section 49-D and such order has become final in respect of the whole or any portion of such property, such property or portion thereof, or if it has been so d under sub-section (3) of section 49-A, the sale proceeds thereof, as the case may be, shall vest in the Government free from all encumbrances.

49G.

Bar of jurisdiction in certain cases.

- Whenever any scheduled timber belonging to the Government or any tool, rope, chain, boat, vehicle or cattle, used for committing any offence in respect of any scheduled timber, is seized under sub-section (1) of section 41, notwithstanding anything to the contrary contained in this Act or in the Code of Criminal Procedure, 1973 (Central Act 2 of 1974) or in any other law for the time being in force,-

(a)

the authorised officer, under section 49-A, or the Forest officer specially empowered under section 49-C, or the Sessions Judge hearing an appeal under section 49-D, shall have, and

(b)

any other officer, court, tribunal or authority shall not have, jurisdiction to make orders with regard to the custody, possession, delivery, disposal or distribution of such property.]

50.

Penalty for counterfeiting or defacing marks on trees and timber, and for altering boundary marks.

- Whoever, with intent to cause damage or injury to the public or to any person, or to cause wrongful gain as defined in the Indian Penal Code (Central Act XLV of 1860)-

(a)

knowingly counterfeits upon any timber or standing tree a mark used by Forest Officer to indicate that such timber or tree is the property of the [Central or State Government]

[The word 'Crown' was substituted for the word 'Government' by the Adaptation Order of 1937 and the words 'Central or State Government' were substituted for 'Crown' by the Adaptation (Amendment) Act, 1950.]

or of some person, or that it may lawfully be cut or removed by some person; or

(b)

unlawfully affixes to any timber or standing tree a mark used by Forest Officer; or

(c)

alters, defaces or obliterates any such mark placed on any timber or standing tree by or under the authority of a Forest Officer; or

(d)

alters, moves, destroys or defaces any boundary mark of any forest or any land to which any provisions of this Act apply;

shall be punished with imprisonment for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

51.

Power of arrest without warrant.

- Any Forest Officer or Police Officer may, without orders from a [Magistrate]

[Now, judicial Magistrate (See section 3(4)(a) of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974).]

and without a warrant, arrest any person reasonably suspected of having been concerned in any forest-offence punishable with imprisonment for one month or upwards if such person refuses to give his name and residence, or gives a name or residence which there is reason to believe to be false, or if there is reason to believe he will abscond.

[Any person arrested under this section shall be informed, as soon as may be, of the grounds for such arrest and shall be produced before the nearest Magistrate within a period of twenty-four hours of such arrest excluding the time necessary for the journey from the place of arrest to the Court of the Magistrate; and no such person shall be detained in custody beyond the said period without the authority of a Magistrate.]

[Substituted for the original paragraph by the Adaptation (Amendment) Order of 1950.]

52.

Punishment for wrongful seizure or arrest.

- Any Forest Officer or Police Officer who vexatiously and unnecessarily seizes any property on pretence of seizing property liable to confiscation, under this Act, or who vexatiously and unnecessarily arrests any person, shall be punished with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

53.

Power to prevent commission of offence.

- Every Forest Officer and Police Officer shall prevent, and may interfere for the purpose of preventing the commission of any forest-offence.

54.

Operation of other laws not barred.

- Nothing in this Act shall be deemed to prevent any person from being prosecuted under any other law for any act or omission which constitutes a forest-offence, or from being liable under such other law to any higher punishment or penalty than that provided by this Act or the rules made thereunder:

Provided that no person shall be punished twice for the same offence.

55.

Power to compound offences.

- [(1)]

[The first and second paragraphs of section 55 were renumbered as sub-sections (1) and (2) of section 55 by Tamil Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979).]

Any Forest Officer specially empowered in this behalf may accept, from any person reasonably suspected of having committed any forest-offence other than an offence under section 50 [or section 52]

[The expression 'or section 52' was omitted by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]
, [xxx]

[The expression 'or section 52' was omitted by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]
a sum of money by way of compensation for the offence which may have been committed, and where any property has been seized as liable to confiscation, may release the same on payment of the value thereof as estimated by such officer.

(2)

□

[The first and second paragraphs of section 55 were renumbered as sub-sections (1) and (2) of section 55 by Tamil

Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979).]

On the payment of such sum of money, or such value, or both, as the case may be, to such officer, the accused person, if in custody, shall be discharged, the property seized shall be released, and no further proceedings shall be taken against such person or property.

(3)

[Nothing contained in sub-sections (1) and (2) shall apply to any offence in respect of -

(a)

any sandalwood, where the weight of such sandalwood involved in such offence is more than one hundred kilograms; and

(b)

any scheduled timber (other than sandalwood) where the value of such scheduled timber involved in such offence is more than ten thousand rupees.]

56.

Presumption that timber or forest produce belongs to the Central or State Government.

- When, in any proceedings taken under this Act, or in consequence of anything done under this Act, a question arises as to whether any forest-produce is the property of the [Central or State Government]

[The word 'Crown' was substituted for the word 'Government' by the Adaptation Order of 1937 and the words 'Central or State Government' were substituted for 'Crown' by the Adaptation (Amendment) Act, 1950.]

, such produce shall be presumed to be the property of the [Central or State Government]

[The word 'Crown' was substituted for the word 'Government' by the Adaptation Order of 1937 and the words 'Central or State Government' were substituted for 'Crown' by the Adaptation (Amendment) Act, 1950.]

until the contrary is proved.

56A.

[Punishment for habitual offence.

[Inserted by Tamil Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979).]

- In respect of any offence relating to any scheduled timber, any person who is found by the Magistrate to be the habitual offender, such person shall be punished with imprisonment for a term which may extend to five years, but which shall not be less than [three years]

[Sub-section (3) was substituted by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992). Before it is substituted it was added by the Tamil Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979). The said sub-section (3), read as follows:]

and with fine which may extend to [twenty thousand rupees]

[Substituted for the expressions 'two years', 'ten thousand rupees' and 'three thousand rupees', respectively by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

, but which shall not be less than [fifteen thousand rupees]

[Substituted for the expressions 'two years', 'ten thousand rupees' and 'three thousand rupees', respectively by Tamil Nadu Forest (Amendment) Act, 1992 (Tamil Nadu Act 44 of 1992).]

Explanation. - For the purpose of this section, 'habitual offender' means a person, who before or after the date of publication of the Tamil Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979) in the Tamil Nadu Government Gazette has been sentenced to a substantive term of imprisonment (such sentence not having been set aside in appeal or revision) for not less than three occasions for any offence relating to any scheduled timber, each of the subsequent sentence having been passed in respect of such offence relating to any scheduled timber committed after the passing of the sentence on the previous occasions.

56B.

Certain offences to be non-bailable.

- The offence in respect of any scheduled timber shall be non-bailable and the provisions of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974) with respect to non-bailable offence shall apply to those offences.

56C.

Offences under the Act to be cognizable.

- Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (Central Act 2 of 1974), any offence in

respect of any scheduled timber shall be deemed to be cognizable offence within the meaning of that Code.

56D.

Presumption as to commission of offence in respect of scheduled timber.

- Whenever any person is accused of any offence under this Act in respect of any scheduled timber, it shall be presumed until the contrary is proved that such person has committed such offence.

56E.

Power to amend Schedule.

(1)

The Government may, by notification, add any timber to, or omit any timber from, the Schedule.'

(2)

All references made in this Act to the Schedule shall be construed as references to the said Schedule as for the time being amended in exercise of the powers conferred by this section.]

Chapter VIII

Cattle Trespass

57.

Cattle Trespass Act, 1871, to apply.

- Cattle trespassing in a reserved forest, or lands on which the grazing of cattle has been prohibited by rules made under section 26, or which has been closed under section 27, shall be deemed to be cattle doing damage to a public plantation within the meaning of the eleventh section of the Cattle Trespass Act, 1871 (Central Act I of 1871), and may be seized and impounded, as such by any Forest Officer or Police Officer.

58.

Power to alter fines fixed by that Act.

- The [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may, by notification in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

, direct that, in lieu of the fines fixed by the 12th section of the Act last aforesaid, there shall be levied, in all or any of the areas to which this Act applies for each head of cattle impounded under section 57 of this Act, such fines as [they think]

[Substituted for the words 'he thinks' by the Adaptation Order of 1937.]

fit, but not exceeding the following (that is to say):-

Rs.

For each elephant

10

For each buffalo or camel

200

For each horse, mare, gelding, pony, colt,

filly, mule, bull, bullock, cow, calf or heifer

1

For each ass, pig, ram, ewe, sheep, lamp, goat

or kid.

0.5

Chapter IX

Forest Officers

59.

Government may invest Forest Officers with certain power.

- The [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may invest any Forest Officer by name, or as holding an office, with the following powers (that is to say):-

(a)

the powers of a Settlement Officer under the [Tamil Nadu Boundaries Act, No. XXVIII of 1860]

[This Act was repealed by Tamil Nadu Act IV of 1897. See now the Tamil Nadu Survey and Boundaries Act, 1923 (Tamil Nadu Act VIII of 1923).]

;

(b)

the powers of a Civil Court to compel the attendance of witnesses and the production of documents;

(c)

power to hold inquiries into forest-offences, and in the course of such inquiries, to receive and record evidence, and to issue search warrants which may be executed in the manner provided by the [Code of Criminal Procedure, 1898 (Central Act V of 1898)]

[See now sections 274 to 277 of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974).]

;

(d)

power to accept compensation for forest-offence under section 55, and may withdraw any powers so conferred.

Any evidence recorded under clause (c) of this section shall be admissible in any subsequent trial before a Magistrate of the alleged offender:

Provided that it has been taken in the presence of the accused person, and recorded in the manner provided by [section 333]

[See now sections 274 to 277 of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974).]

, [section 334]

[See now sections 274 to 277 of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974).]

or [section 335]

[See now sections 274 to 277 of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974).]

of the Code of Criminal Procedure.

60.

Forest Officers deemed public servants.

- All Forest Officers shall be deemed to be public servants within the meaning of the Indian Penal Code (Central Act XLV of 1860).

61.

Indemnity for acts done in good faith.

- No suit or criminal prosecution shall lie against any public servant for anything done or omitted in good faith under this Act.

62.

[Omitted by the Adaptation Order of 1937.]

Chapter X

Miscellaneous

63.

Additional powers to make rules.

- The [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

may make rules consistent with this Act -

(a)

to declare by what Forest Officer or class of Forest Officers the powers or duties conferred or imposed by or under this Act on a Forest Officer shall be exercised or performed;

(b)

to regulate the procedure of Forest Settlement Officers;

(c)

to regulate the rewards to be paid to officers and informers from the proceeds of fines and confiscations under this Act, or from the public treasury;

(d)

for the preservation, reproduction and disposal of trees and timber belonging to the [Central or State Government]
[The words 'The Crown' were substituted for the words 'Government' by the Adaptation Order of 1937 and the words 'Central or State Government' were substituted for 'Crown' by the Adaptation (Amendment) Order of 1950.]

, but grown on lands belonging to, or in the occupation of, private persons; and

(e)

generally to carry out the provisions of this Act.

64.

Rules when to have force of law.

- All rules made by the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

under this Act shall be published in the [Official Gazette]

[Substituted for the words 'Fort St. George Gazette' by the Adaptation Order of 1937.]

and in the Official Gazette of the district affected thereby, and shall, thereupon, have the force of law. Such rules may be cancelled or varied by like notification.

Powers of Government exercisable, from time to time. - All powers conferred by this Act on the Government may be exercised, from time to time, as occasion requires.

64A.

[Rules to be placed before the Legislature.

[Inserted by section 8 of the Tamil Nadu Forest (Amendment) Act, 1961 (Tamil Nadu Act 36 of 1961).]

- Every rule made by the Government under this Act shall, as soon as possible after it is made, be placed on the table of [the Legislative Assembly], and if, before the expiry of the session in which it is so placed or the next session, [the Legislative Assembly agrees]

[Substituted for the words 'both Houses agree' by Tamil Nadu Adaptation of laws Order, 1987.]

in making any modification in any such rule or [the Legislative Assembly agrees]

[Substituted for the words 'both Houses agree' by Tamil Nadu Adaptation of Laws Order, 1987.]

that the rule should not be made, the rule shall, thereafter, have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.]

65.

Government may delegate powers.

- It shall be lawful for the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

to delegate any of the powers conferred by sections 19,20,22,27,58 and 62 to the Board of Revenue, or to such other controlling Revenue authority as the Government may, from time to time, appoint.

The Board of Revenue was abolished. By virtue of sub-section (5) of section 10 of the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980), any reference to the Board of Revenue, shall be deemed to be a reference to the State Government or the Appropriate Authority specified in the notification under section 4(1) of the said Act.

66.

Recovery of money due to Government.

- All money, other than fines, payable to the Government under this Act, or any rules made thereunder, or on account of timber or forest-produce or of expenses incurred in the execution of this Act in respect of timber or forest-produce [or under any contract relating to timber or forest-produce, including any sum recoverable thereunder for the breach thereof or in consequence of its cancellation, or under the terms of a notice relating to the sale of timber or forest-produce by auction or by See [invitation of tenders]

[Inserted by section 2 of the Tamil Nadu Forest (Amend.) Act 1933 (Tamil Nadu Act I of 1934).]

, issued by or under the authority of a District Forest Officer] and all compensation awarded to Government under this Act, may, if not paid when due, be recovered, under the law for the time being in force, as if it were in arrear of land revenue.

67.

Lien of forest produce for such money.-Power to sell such produce.

- When any such money is payable for, or in respect of any forest-produce, the amount thereof shall be deemed to a first charge on such produce; and, if such amount be not paid when due, such produce may be taken possession of by or under the authority of the District Forest Officer, and may be retained until such amount has been paid, or such Forest Officer may sell such produce by public auction, and the proceeds of the sale shall be applied first in discharging such amount.

The surplus (if any), if not claimed within two months from the date of the sale by the person entitled thereto, shall be forfeited to Government.

68.

Land required under this Act to be deemed to be needed for public purpose under the Land Acquisition Act.

- Whenever it appears to the [Government]

[The words 'Provincial Government', were substituted for the words 'Governor in Council' by the Adaptation Order of 1937 and the word 'Provincial' was omitted by the Adaptation (Amendment) Order of 1950.]

that any land is required for any of the purposes of this Act, such land shall be deemed to be needed for a public purpose within the meaning of the [Land Acquisition Act, 1870 (Central Act X of 1870), section 4]

[See now the Land Acquisition Act, 1894 (Central Act 1 of 1894).]

.

68A.

[Liability of person unauthorisedly occupying any land in reserved forest, etc. to summary eviction.

[Inserted by Tamil Nadu Forest Amendment) Act, 1981 (Tamil Nadu Act 41 of 1981).]

- Any person unauthorisedly occupying any land in reserved forest or any land at the disposal of Government may be summarily evicted by an officer of Forest Department not below the rank of Forest Ranger or an Officer of the Revenue Department not below the rank of Tahsildar, having jurisdiction over the area in which such land is situated, in such manner as may be prescribed and any crop or other product raised on such land, shall be liable to forfeiture and any building or other construction erected or anything deposited thereon shall also be liable to forfeiture. Forfeiture under this section, shall be adjudged by the officer referred to above and any property so forfeited, shall be disposed of in such manner as may be prescribed:

Provided that no eviction or adjudication under this section adversely affecting a person shall be made or adjudged, unless-

(a)

such person has been given a notice in such manner as may be prescribed; and

(b)

the representation, if any, received in pursuance of such notice has been duly considered by such officer concerned.]

[The Schedule]

[Added by Tamil Nadu Forest (Amendment) Act, 1979 (Tamil Nadu Act 45 of 1979).]

(See section 2 and section 56-E)

d Timber

(1)

Blackwood;

(2)

[xxx]

[The words 'Red Sanders' were omitted by G.O. Ms. No. 1374, Forest and Fisheries Department, dated the 22nd October 1980.]

;

(3)

Rosewood;

(4)

Sandalwood;

(5)

[xxx]

[Words 'Silver Oak; and' was omitted by G.O. Ms. No. 216, E. & F., dated the 12th July 2007.]

(6)

Teakwood.

(1)

Extension of Tamil Nadu Act V of 1882 and certain other Act in transferred territory repeals and savings. - The Tamil Nadu Forest Act, 1882 (Tamil Nadu Act V of 1882), as in force immediately before the date of the commencement of this Act and as amended by this Act, the Tamil Nadu Wild Elephants Preservation Act, 1873 (Tamil Nadu Act I of 1873), the Tamil Nadu Forest (Validation) Act, 1882 (Central Act XXI of 1882) and the Wild Birds and Animals Protection Act, 1812 (Central Act VIII of 1912), as in force immediately before the date of the commencement of this Act (hereinafter in this section referred to as the said law) are hereby extended to, and shall be in force in, the transferred territory.

(2)

The Game and Fish Protection Act (Travancore Act XII of 1089), the Travancore-Cochin Forest Act, 1951 (Travancore-Cochin Act III of 1952), and any other law corresponding to the said law, in force in the transferred territory immediately before the date of the commencement of this Act, shall stand repealed on the date of such commencement.

(3)

The repeal by sub-section (2) of the Game and Fish Protection Act (Travancore Act XII of 1089), the Travancore-Cochin Forest Act, 1951 (Travancore-Cochin Act III of 1952) and any other law corresponding to the-said law, in force in the transferred territory immediately before the date of the commencement of this Act shall not affect -

(a)

the previous operation of any such Act or law or anything duly done or suffered thereunder;

(b)

any right, privilege, obligation or liability acquired/ accrued or incurred under any such Act or law; or

(c)

any penalty, forfeiture or punishment incurred in respect of any offences committed against any such Act or law; or

(d)

any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid;

(e)

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if this Act had not been passed.

(4)

Subject to the provisions of sub-section (3), anything done or any action taken, including any appointment made, notification, order, instruction or direction issued or any rule or form framed under any such Act or law, shall be deemed to have been done or taken under the said law corresponding thereto and shall continue to levy effect accordingly, unless and until superseded by anything done or any action taken under the said law.

(5)

For the purpose of facilitating the application of the said law in the transferred territory, any Court or other authority may construe such law with such alterations not affecting the substance as may be necessary or proper to adapt it to the matter before the Court or other authority.

(6)

Any reference in the said law to a law which is not in force in the transferred territory shall, in relation to that territory, be construed as a reference to the corresponding law, if any, in force in that territory.

(7)

Any reference in any law which continues to be in force in the transferred territory' after the date of the commencement of this Act, to any Act or law, repealed by sub-section (2) shall, in relation to that territory, be construed as a reference to the said law corresponding thereto.

(8)

(a)

If any difficulty arises in giving effect to the provisions of this Act or of the said law as extended to the transferred territory by this Act, the State Government, as occasion may require, may, by order, do anything which appears to them necessary for the purpose of removing the difficulty.

(b)

All Orders made under clause (a) shall be published in the Official Gazette and, unless they are expressed to come into force on a particular day, shall come into force on the day on which they are so published.

(c)

Every order made under clause (a) shall, as soon as possible, after it is made, be placed on the table of [the Legislature Assembly]

[Substituted for the words 'both Houses of the Legislature' by Tamil Nadu Adaptation of Laws Order, 1987.]

, and if, before the expiry of the session in which it is so placed or the next session, [the legislative Assembly agrees]

[Substituted for the words 'both Houses agree' by Tamil Nadu Adaptation of Laws Order, 1987.]

in making any modification in any such order or [the legislative Assembly agrees]

[Substituted for the words 'both Houses agree' by Tamil Nadu Adaptation of Laws Order, 1987.]

that the order should not be made, the order shall thereafter have effect only in such modified form or be of no effect, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that order.

Explanation. - For the purpose of this section, the expression transferred territory shall mean the Kanyakumari district and the Shencottah taluk of the Tirunelveli district.

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Translation